

SENATE No. 2709

Senate, November 6, 2025 -- Text of the Senate Bill to enhance access, inclusion, support and equity for military connected families (Senate, No. 2709) (bing the text of Senate Bill, No. 2676, printed as amended)

The Commonwealth of Massachusetts

**In the One Hundred and Ninety-Fourth General Court
(2025-2026)**

An Act to enhance access, inclusion, support and equity for military connected families.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 1 of the General Laws is hereby amended by striking out section 2,
2 as appearing in the 2024 Official Edition, and inserting in place thereof the following section:-

3 Section 2. (a) The sovereignty and jurisdiction of the commonwealth shall extend to all
4 places within its boundaries subject to the concurrent jurisdiction granted over places ceded to or
5 acquired by the United States.

6 (b) The jurisdiction of a court shall be deemed concurrent with that of a federal court
7 sitting in the commonwealth over proceedings involving a violation of federal law committed by
8 a minor on a military installation of the United States Department of Defense if: (i) the United
9 States Attorney or the federal court waives exclusive jurisdiction; and (ii) the violation of federal
10 law is a crime under state law.

11 SECTION 2. Said chapter 1 is hereby further amended by striking out section 7A, as so
12 appearing, and inserting in place thereof the following section:-

13 Section 7A. (a) If the governor finds that it is in the public interest, the governor may
14 accept on behalf of the commonwealth retrocession of all or part of the legislative jurisdiction
15 over property within the commonwealth over which such jurisdiction has been ceded to the
16 United States by the commonwealth. Such acceptance of retrocession shall take effect in each
17 case upon the written acceptance by the governor of a notice of retrocession signed by the duly
18 authorized officer or agent of the United States having supervision and control over the property
19 being retroceded. A copy of the notice of retrocession and said written acceptance shall be filed
20 with the secretary of state and the city or town clerk of the city or town in which the affected
21 property is located and in the case of property located in more than 1 city or town with the clerk
22 of each municipality in which the property is located.

23 (b) If the United States or its delegate sends a written request for the transfer of
24 jurisdiction from the United States to the commonwealth for all juvenile matters occurring: (i) on
25 a military installation located in the commonwealth or; (ii) within a portion of a military
26 installation located in the commonwealth and property boundaries of such portion are clearly
27 identified in said written request, the governor shall: (A) transmit a written reply to the United
28 States or its delegate accepting the proposed transfer of jurisdiction request; and (B) file an
29 authenticated copy of said written request with the secretary of state and the select board of the
30 town or mayor of the city in which the military installation is located. For the purpose of this
31 section, “military installation” shall have the same meaning as prescribed by section 1 of chapter
32 15E.

33 SECTION 3. Chapter 33 of the General Laws is hereby amended by adding the following
34 section:-

35 Section 140. The adjutant general, in consultation with the executive office of veterans
36 services, shall track suicides among veterans of the Massachusetts National Guard and shall
37 make such information publicly available on their website in a machine readable format, to the
38 extent feasible; provided, however, that such data shall be published in accordance with all state
39 and federal privacy laws.

40 SECTION 4. Section 6B of chapter 71 of the General Laws is hereby amended by adding
41 the following subsection:-

42 (c) If the enrolling military-connected student is transferring with a section 504 plan
43 pursuant to section 504 of the Rehabilitation Act of 1973, 29 U.S.C. 794, an individualized
44 family service plan as defined in 20 U.S.C. 1436 or an individualized education program under
45 20 U.S.C. 1401, the receiving school district shall take all reasonable steps including, but not
46 limited to, obtaining records and any prior evaluations to provide services comparable to those
47 described in the student's section 504 plan, individualized family service plan or individualized
48 education program from the student's previous school district. If the receiving school district
49 determines that a new evaluation is necessary to determine continued eligibility or services or a
50 parent or another person concerned with the student's development requests an evaluation, the
51 receiving school district shall immediately provide written notice to the parents and such
52 reevaluation shall occur not less than 30 school days after receipt of parental consent for
53 evaluation.

54 SECTION 5. Chapter 76 of the General Laws is hereby amended by inserting after
55 section 12C the following section:-

Section 12D. (a) A military-connected student as defined under subsection (a) of section 6B of chapter 71 shall be eligible to remain enrolled in their school of origin if: (i) at least 1 parent or guardian of the student has a department of defense-issued identification card; and (ii) at least 1 parent or guardian provides evidence that such parent or guardian will be on active duty status or active duty orders, which shall include the temporary transfer of such parent or guardian in compliance with official orders to another location in support of combat, contingency operation or a natural disaster requiring the use of orders for not less than 30 consecutive days. For the purposes of this section, “school of origin” shall mean the school in which the student was enrolled prior to their parent’s or guardian’s relocation as described in this section.

(b) Notwithstanding any other provision of this chapter, a school district of residence shall not prohibit the transfer of a military-connected student.

(c) A military-connected student who transfers pursuant to this section may remain at the school of origin until the student completes the highest grade level at the school of origin; provided, however, that notwithstanding any other general or special law to the contrary, the district or school of origin shall not be required to provide transportation to a military-connected student who continues to be enrolled in the school of origin following a change in residency.

SECTION 6. Section 1 of chapter 209A of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by inserting after the definition of “Law officer” the following definition:-

"Military protective order", an order issued against a current member of United States Armed Forces, the Massachusetts National Guard or the national guard of another state or

77 territory by the member's commanding officer, on a form prescribed by the United States
78 Department of Defense.

79 SECTION 6. Section 4 of said chapter 209A, as so appearing, is hereby amended by
80 adding the following paragraph:-

81 Military protective orders shall be admissible evidence in proceedings under this chapter.

82 SECTION 7. The data required under section 140 of chapter 33 of the General Laws shall
83 be made available on the Massachusetts National Guard's website not later than 6 months after
84 the effective date of this act.